

25LBCV00964 25LBCV00964

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C08%2F07%2F2026

Source SHA-256: 036fd739b71d38efc44230543f5b65696873818566bc7b566eca36a29b435da4

Case Number: 25LBCV00964 Hearing Date: August 7, 2026 Dept: S28

BACKGROUND

On March

24, 2025, Plaintiff Scott Reich ("Plaintiff") commenced this action against American Honda Motor Co., Inc. ("Defendant") alleging violations of Statutory Obligations under the Song-Beverly Act.

On

June 17, 2026, Defendant filed the instant Motion to Bifurcate.

As of August 6, 2026, Plaintiff has not filed opposition.

DISCUSSION

Applicable

Law

"The court

shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice,

oppression, or fraud. Evidence of profit and financial condition shall be presented to the same trier of fact that found for the plaintiff and found one

or more defendants guilty of malice, oppression, or fraud.” (Civil Code § 3295, subd. (d).)

Pursuant

to Civil Code section 3295, subdivision (d), Defendant is entitled to bifurcate the issue of its financial condition. “As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant’s wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant’s ‘deep pockets’ before they determine these threshold issues.” (Torres v. Automobile Club of So. California (1997) 15 Cal.4th 771, 777-78.)

Analysis

Defendant requests that the entire issue of punitive damages be bifurcated, including requesting that the Court bar arguments that “Defendant ‘deserves to be punished’ or should be ‘made an example of.’ ” (Motion, p. 2.) However, Defendant’s request is broader than the protections provided by statute. The excluded evidence pursuant to Civil Code section 3295, subdivision (d), is “evidence of the defendant’s wealth and profits.” Thus, Defendant’s motion to bifurcate is granted, in part. Evidence of Defendant’s profit and financial condition is ordered excluded until the appropriate time.

CONCLUSION

Defendant’s Motion to Bifurcate is GRANTED, in part.